



File No.: EXP202300186 (AI/00004/2023)

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 10/01/23, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against "UNIDENTIFIED RESPONSIBLE PARTY" and against TWITTER INTERNATIONAL UNLIMITED COMPANY (hereinafter, the defendant), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The grounds for the complaint were regarding the publication on the Twitter profile, ***URL.1, of two videos in which the complainant appears in a pornographic manner dated ***DATE.1 and adds that when he became aware of the publication of these videos, he filed a complaint with the social network TWITTER and at a police station. The internet addresses where the videos appeared were as follows:

***URL.2

***URL.3

SECOND: On 11/01/23, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- Although the complainant states that he reported this content to the social network TWITTER and that he filed a complaint at a police station, there is no evidence of the claims made in the complaint.
- A precautionary measure for the urgent removal of content was sent to TWITTER on 11/01/23, and on 15/02/23, this Agency received a letter from this entity stating that the content has been removed, with this fact being duly recorded by the AEPD.
- On 09/02/23, the entity TWITTER was requested to provide the IP addresses of the last five sessions of the user of the profile in which the claimed publications were made. No correspondence has been received regarding the request sent by this entity.
- Given that the complainant did not attach the police report to his complaint, on 10/07/23, a request was made to the complainant for a copy of this report. No correspondence has been received in this regard from the complainant.
- It was verified that the profile in which the claimed content was published has a PayPal account for receiving monetary amounts for similar content requests, and a request was made to PayPal to inform this Agency of the data held in their systems regarding this PayPal account. As a result of this request, on 19/07/23, this Agency received a letter from this entity informing of the data they have regarding this account. However, this information is insufficient to determine the account holder as the data appears to be fraudulent and the account has not been verified. In this regard, it was verified that both the name and the postal address do not allow for the identification of the holder. No phone number was provided. The entity stated that this PayPal account has been closed due to possible fraudulent use.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy in data processing

Including the complainant's image on Twitter, reproducing a private, sexual attitude that identifies this person constitutes the processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR.

In these cases, as in the case subject to the complaint, the usual legitimizing ground is consent, in general. And it is the person who uploads the data.

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personal data without any limitation that must demonstrate that it has that consent.

In order for such processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met: the data subject has given consent to the processing of their personal data for one or more specific purposes; processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures; processing is necessary for compliance with a legal obligation to which the controller is subject; processing is necessary to protect the vital interests of the data subject or of another natural person; processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point (f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

III

Conclusion

The complaint stated the difficulty of reporting on Twitter, as the complainant is not a user of that network, a sexual content published on ***DATE.1 thus disseminating the image of the complainant. Following the actions carried out by this Agency, the images have disappeared from the social network. To identify the person who disseminated the images and the conversation subject to the complaint, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which determines the following:

"1. Before adopting the agreement to initiate proceedings, and once the complaint has been admitted for processing if there is one, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing that involves mass traffic of personal data.

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2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of

Title VII of this organic law and may not exceed twelve months from the date of the agreement to admit the complaint or from the date of the agreement to initiate it when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.” As indicated in the Facts of this resolution, it is verified that the content subject to the complaint has already been removed from the reported profile, without being able to determine the authorship of that publication.

In accordance with what has been stated by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí.

Director of the Spanish Data Protection Agency.

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